

Supreme Court of the State of New York
County of Richmond

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RAYMOND WIENER

Plaintiff,

SUMMONS

-against-

Index #:

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, GIANCARLO
MARATEA, TIMOTHY LAKE, "JOHN", a fictitious
name MOSKOVIC and THE NEW YORK CITY
DEPARTMENT OF CORRECTIONS,

Defendant(s)

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Plaintiff designates Richmond County as the place of trial. The basis of the venue is the place of occurrence.

TO THE ABOVE NAMED DEFENDANT(S)

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York and in case of your failure to answer, judgment will be taken against you by default for the relief demanded in the annexed complaint with interest from the date the cause of action arose, costs, disbursements and attorneys fees.

Dated: Staten Island, New York
November 3, 2017

Law Office of James Maleady, PC
292 Nelson Avenue
Staten Island, New York 10308
Tel # (347) 452-3703
Fax# (718) 317-5903
Email: bmmaleady2@gmail.com

The Addresses of the Defendants are:

THE CITY OF NEW YORK, 100 Church Street, New York, NY 10007
NEW YORK CITY POLICE DEPARTMENT, 1 Police Plaza, New York, NY
GIANCARLO MARATEA, c/o 120 Precinct, 78 Richmond Terrace, Staten Island, NY 10301
TIMOTHY LAKE, c/o 120 Precinct, 78 Richmond Terrace, Staten Island, NY 10301
"JOHN", a fictitious name MOSKOVIC, 123 Precinct, 116 Main Street, Staten Island, NY
10307
THE NEW YORK CITY DEPARTMENT OF CORRECTIONS, Washington St., New York, NY

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The Plaintiff, RAYMOND WIENER by his attorneys, THE LAW OFFICES OF JAMES
MALEADY, PC allege the following on information and belief:

1. The incident in this complaint occurred on November 9, 2016.
2. On the aforementioned date, Defendant, THE CITY OF NEW YORK maintained law enforcement agency, known as THE NEW YORK CITY POLICE DEPARTMENT, Defendant.
3. On the aforementioned date, Defendant, NEW YORK CITY POLICE DEPARTMENT, employed Defendant, GIANCARLO MARATEA.
4. On the aforementioned date, Defendant, GIANCARLO MARATEA, had Shield # 958871 and was assigned to The 120th Precinct in Staten Island, NY.
5. On the aforementioned date, Defendant, NEW YORK CITY POLICE DEPARTMENT, employed Defendant, TIMOTHY LAKE.
6. On the aforementioned date, Defendant, TIMOTHY LAKE had Shield # 936903 and was assigned to The 120th Precinct in Staten Island, NY.
7. On the aforementioned date, Defendant, NEW YORK CITY POLICE DEPARTMENT, employed Defendant, "JOHN" (a fictitious name) MOSKOVIC.
8. On the aforementioned date, Defendant, "JOHN" (a fictitious name) MOSKOVIC was assigned to 123rd Precinct in Staten Island, NY.
9. On the aforementioned date, Defendant, "JOHN" (a fictitious name) MOSKOVIC has unknown Shield #.
10. On the aforementioned date, Defendant, THE CITY OF NEW YORK, maintained an agency, THE NEW YORK CITY DEPARTMENT OF CORRECTIONS.
11. On the aforementioned date, Plaintiff, RAYMOND WIENER, was taken into custody and placed under arrest by Defendant, "JOHN" (a fictitious name) MOSKOVIC of THE NEW YORK CITY POLICE DEPARTMENT at 123rd Precinct.
12. Following his arrest, Plaintiff, RAYMOND WIENER, was in the custody and control of

Defendant, NEW YORK CITY POLICE DEPARTMENT on the aforementioned date.

13. As part of the post arrest procedure, Plaintiff was transported while under arrest to 120th Precinct in Staten Island, NY.
14. Upon his arrival at The 120th Precinct, Plaintiff was deprived and confined by Defendants, TIMOTHY LAKE, GIACARLO MARATEA and "JOHN" (a fictitious name) MOSKOVIC.
15. As part of post arrest process, Plaintiff, RAYMOND WIENER, was brought to a second floor holding area and interviewed.
16. During the interview, there was a hold cell located nearby and there was a prisoner in that cell with name of ELVIN SUAREZ.
17. During the interview on the second floor holding area, prisoner, ELVIN SUAREZ appeared to be highly agitated and upset, and acted in a menacing and threatening manner toward Plaintiff, RAYMOND WIENER.
18. Defendants, TIMOTHY LAKE, GIANCARLO MARATEA and "JOHN" (a fictitious name) MOSKOVIC, other officers of Defendant, THE NEW YORK CITY POLICE DEPARTMENT and officers of THE NEW YORK CITY DEPARTMENT OF CORRECTIONS were aware that ELVIN SUAREZ was in a highly agitated and upset state in that he was yelling and shouting and further acting inappropriately.
19. Defendants, TIMOTHY LAKE, GIANCARLO MARATEA and "JOHN" (a fictitious name) MOSKOVIC, other officers of Defendant, THE NEW CITY POICE DEPARTMENT and officers of THE NEW YORK CITY DEPARTMENT OF CORRECTIONS were aware and present when ELVIN SUAREZ made threats against Plaintiff, RAYMOND WIENER, in particular of violence and injury being imposed on Plaintiff, RAYMOND WIENER, upon his confinement with him.
20. Defendants, TIMOTHY LAKE, GIANCARLO MARATEA and "JOHN" (a fictitious name) MOSKOVIC, other officers of Defendant, THE NEW CITY POICE DEPARTMENT and officers of THE NEW YORK CITY DEPARTMENT OF CORRECTIONS, compelled Plaintiff, RAYMOND WIENER, to enter a cell with ELVIN SUAREZ.
21. Moments after Plaintiff, RAYMOND WIENER, was placed in the cell with ELVIN SUAREZ, ELVIN SUAREZ engaged in an unprovoked attack upon Plaintiff, RAYMOND WIENER, striking in the back of his head and causing to fall into the cell door causing Plaintiff injuries.
22. Defendants were negligent in the performance of their employment in failing to recognize the danger posed to Plaintiff, RAYMOND WIENER, by his incarceration with ELVIN SUAREZ, and protecting Plaintiff, RAYMOND WIENER, from that known danger.
23. As a result of Defendants' negligence, Plaintiff, RAYMOND WIENER was assaulted by ELVIN SUAREZ and suffered physical injuries.
24. The amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

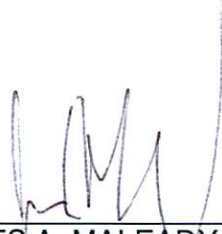
25. Plaintiff, RAYMOND WIENER, repeats, reallges and reiterates each and every

allegation contained in each and every Paragraph set forth heretofore as if they are set forth in their entirety.

26. That the Defendants owed Plaintiff "a special duty" to protect him while he was within the custody and control of the Defendants.
27. Defendants were aware from the conduct of ELVIN SUAREZ during the Plaintiff's time outside the cell, that ELVIN SUAREZ posed a danger to Plaintiff.
28. Plaintiff requested that Defendants intervene and protect Plaintiff by placing him separate and apart from ELVIN SUAREZ prior to his placement in the cell with ELVIN SUAREZ.
29. Defendants rejected his request to be placed separately from ELVIN SUAREZ and advised that they would protect from being hurt.
30. Moments after being placed in the cell, Plaintiff was subject to an unprovoked attack by ELVIN SUAREZ.
31. Plaintiff suffered physical injuries due to the assault upon him by ELVIN SUAREZ.

WHEREFORE, the Plaintiff(s) respectfully request that the Court grant a judgment against the defendants on all causes of action for compensatory damages in an amount to be determined by a jury at the trial of this action together with interest from the date the cause of action accrued, costs, disbursements, punitive damages and attorneys fees.

Dated: Staten Island, New York
November 3, 2017



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Supreme Court of the State of New York
County of Richmond

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RAYMOND WIENER

Plaintiff,

CERTIFICATION

-against-

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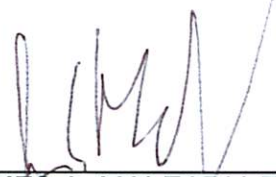
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James A. Maleady affirms, under the penalties of perjury, that the statements herein are true on information and belief.

I am an attorney duly licensed to practice law in the State of New York and the principal of The Law Offices of James Maleady, PC. I represent the Plaintiff.

PURSUANT TO THE RULES OF THE CHIEF ADMINISTRATOR, 22 NYCRR 130-1.1-a and with regard to the attached Court Document, the undersigned attorney certifies that to the best of his knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the aforementioned papers, or the contentions therein are not frivolous as defined in subsection c of Section 130-1.1

Dated: November 3, 2017
Staten Island, NY



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DATED FILED:

SUPREME COURT STATE OF NEW YORK
COUNTY OF RICHMOND

RAYMOND WIENER,

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DEPARTMENT OF CORRECTIONS,

Defendants.

VERIFIED SUMMONS AND COMPLAINT

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